

25STCV33104 25STCV33104

County: los-angeles

Division: Civil Law and Motion

Department: 730

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Case Number: 25STCV33104 Hearing Date: September 16, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

JANE

DOE,

Plaintiff,

vs.

KEST INDUSTRIES, LLC, et al.,

Defendants.

Case No.:

25STCV33104

Hearing

Date:

September 16, 2026

ORDER
DENYING MOTION FOR LEAVE TO AMEND
COMPLAINT

I. BACKGROUND

During

Plaintiff Veronica Stoever's ("Stoever") tenancy, Stoever's landlords, Defendants Goldrich & Kest Industries, LLC ("GK") and Bunker Hill Apartments, LLC ("BH") allegedly harassed, distressed, and violated the warranty of habitability with Stoever. Landlord Defendants's attorney, Defendant Kimball, Tirey & St. John LLP ("KTS") allegedly also harassed and denied Stoever her legal rights. Landlord defendants hired Defendant Envirocheck, Inc. ("EC") to test Stoever's apartment. EC found no trace of mold, despite Stoever alleging otherwise. Stoever sued Defendants for thirty-three causes of action.

On

June 11, 2026, Stoever filed the instant motion for leave to amend the complaint. GK and Defendant Greystar California, Inc. ("Greystar") filed an opposition. Stoever replied.

II. LEGAL STANDARD

Pursuant to Code of Civil

Procedure section 473, subdivision (a)(1)[1],

"[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code."

A motion to amend a

pleading before trial must 1) include a copy of the proposed amendment or amended pleading; 2) state what allegations in the previous pleading are to be deleted and where, by page, paragraph and line number, the deleted allegations are located; and 3) state what allegations are proposed to be added, if any,

and where, by page, paragraph and line number, the allegations are located. (Cal. Rules of Court rule 3.1324, subd. (a).) It must also include a support declaration specifying 1) the effect of the amendment; 2) why the amendment is necessary and proper; 3) when the facts giving rise to the amended allegations were discovered; and 4) the reason why the request for amendment was not made earlier. (Id. at subd. (b).)

III. DISCUSSION

Stoever's motion for leave to amend the complaint fails to comply with the requirements of California Rules of Court rule 3.1324, as it does not identify the allegations to be added or deleted from the previous complaint, nor does it contain a declaration.

California Rules of Court rule 3.1324, subdivision (a), requires any motion to amend a pleading include a copy of the proposed amendment and state what allegations are to be added and deleted, identified by page, paragraph, and line number. While Stoever's motion includes a copy of the proposed Second Amended Complaint, it does not identify the allegations to be added or deleted beyond generally describing the potential plaintiffs to be added. This does not satisfy the requirements of California Rules of Court rule 3.1324, subdivision (a)(2-3).

Stoever also failed to submit a proper declaration. California Rules of Court rule 3.1324, subdivision (b), requires any motion to amend a pleading include a declaration in support of the motion. Stoever submitted a document titled "DECLARATION IN SUPPORT OF MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT," attached to the moving papers. However, the 'declaration' does not comply with statutory requirements for a declaration. Pursuant to section 2015.5, a declaration must contain a signed and dated statement that attests the declaration is certified or declared to be true under penalty of perjury. If signed within California, it must include the location of execution; if signed outside of California, the declaration must state it specifically is certified under penalty of perjury under the laws of the State of California. (Ibid.) Stoever's declaration does not contain a wet or digital signature. It also does not certify the declaration was made under penalty of perjury. Therefore, Stoever failed to attach a declaration as required by court rules.

Stoever has failed to comply with California Rules of Court rule 3.1324's requirements. Therefore, the Court denies the motion.

Finally, the Court notes Stoevers identifies herself as a licensed attorney who is representing the 15 other potential plaintiffs on a contingency fee basis. (Mot., Stoevers Decl. ¶ 11.) However, Stoevers has never identified herself by state bar number on any moving papers. The Court is unsure if Stoevers is a currently licensed attorney capable of representing other individuals absent this information.

IV. CONCLUSION

Plaintiff Stoevers's motion for leave to amend is DENIED.

GK and Greystar are ordered to give notice.

DATED:

September 16, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at SMCDEPT730@lacourt.org with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.